

26NWCV00796 26NWCV00796

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Case Number: 26NWCV00796 Hearing Date: August 4, 2026 Dept: C

ESPINOZA, et al. vs

GARCIA, et al.

CASE NO.: 26NWCV00796

HEARING: 8/4/26 @ 9:30 AM

#10

TENTATIVE ORDER

Defendants Victor Gandara Garcia and Raul

Mauricio Gandara's Motion to Quash Service of Summons is DENIED.

Plaintiffs to give NOTICE.

Defendants Victor Gandara Garcia (Garcia) and

Raul Mauricio Gandara (Gandara) (Defendants) specially appear to quash service of summons for lack of personal jurisdiction.

Background

Plaintiffs ROSALINDA

ESPINOZA and LINDA SIMMONS, a minor, by and through her Guardian ad Litem, CARLY MEDINA (Plaintiffs) filed this action arising from a motor vehicle collision allegedly caused by Defendants that occurred in Santa Fe Springs, California. (Complaint, ¶ 10.) Based thereon Plaintiffs allege causes of action for:

1.

Negligence;

2.

Negligent

Entrustment

Legal

Standard

A

defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over him or her. (Code Civ. Proc. § 418.10, subd. (a)(1).) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10. (CCP § 581, subd. (h).)

Discussion

Defendants argue that service by publication was improper. Plaintiffs served both Defendants in the same notice in the Los Angeles Daily Journal on March 12, 2025, March 19, 2025, March 26, 2025 and April 2, 2025. Defendants contend that neither has viewed the publication nor has access to the Los Angeles Daily Journal or could even be expected to know of that publication's existence. (Rullo Decl., ¶5.) The Los Angeles Daily Journal promotes its mission of serving California's legal profession by providing comprehensive reporting on trial and appellate court proceedings, legislative and regulatory matters and legal analysis for California attorneys and legal professionals. (Rullo Decl., ¶ 6.) Defendants are not attorneys or any other type of legal or paralegal professional who would normally be considered in the readership of the publication. (Rullo Decl., ¶ 7.) Garcia is a Spanish speaking permanent resident of Mexico, currently living in Tijuana in the Mexican state of Baja California. (Rullo Decl., ¶ 8.)

Additionally, Defendants dispute liability for the collision. While Garcia owns the vehicle driven during the collision, he was not involved or present at the collision. (Rullo Decl. ¶ 2.) Gandara neither owns the vehicle nor was present at the collision. (Rullo Decl. ¶ 4.)

In opposition, Plaintiffs argue that attempts to personally serve Defendants were unsuccessful. (Kibriya Decl., Exh. 1.) Despite Plaintiffs investigation and repeated service efforts, Plaintiffs did not locate another address for Gandara or any address for Garcia in Mexico before seeking service by publication. (Kibriya Decl., ¶ 10.) The Whittier address remained the only potential address identified for Gandara, and neither the service attempts nor the neighborhood inquiries yielded another address at which he could be served. (Kibriya Decl., ¶ 10.) On March 2, 2026, the Court found that Defendants could not, with reasonable diligence, be served by another authorized method and ordered the summons published once a week for four successive weeks in a newspaper of general circulation in Los Angeles County. (Kibriya Decl., ¶ 8, Exh. 3.) Plaintiffs thereafter published the summons in the Los Angeles Daily Journal on March 12, March 19, March 26, and April 2, 2026. (Kibriya Decl., ¶ 8, Exh. 4.)

Moreover, as to Gandara, Plaintiffs reasonably believe, subject to investigation, that the same and proper individual was served at the same address. (See Declaration of Maria Rullo – SambaSafety Record – Exhibit A – as to the Registered Owner Section; Kibriya Decl., ¶ 12, Exh. 6. True and correct copies of Lexis Report as to Defendant Raul Mauricio Gandara [along with known aliases at the same address].)

The Court finds that Plaintiffs have met their burden regarding proper service. “When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove ... the facts requisite to an effective service.” (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.)

Here, Plaintiffs evidence to have reasonably believed Gandara’s service address was at 13808 Mulberry Drive, Whittier, California, given the vehicle that was part of the collision is registered at that address to Murillo Raul Gandara. Additionally, between December 6, 2025, and January 23, 2026, the process server made repeated attempts to serve Defendants at the Whittier address on different days and at varying times. Those efforts included two one-hour stakeouts and inquiries of neighbors. The process server documented those efforts in declarations of diligence submitted with Plaintiffs’ applications for service by publication. (Kibriya Decl., ¶ 5, Exh. 1.) As to service by publication, this Court authorized service in the Los Angeles Daily Journal. (Kibriya Decl., ¶ 8, Exh. 3.)

Therefore, Plaintiffs demonstrate a good faith effort at personal service was first attempted. i.e., there is a showing that summons “[could not] with reasonable diligence be personally delivered” to the individual defendants. (CCP § 415.20(b).) Defendants are thereafter required to establish availability for personal service in rebuttal, however, Defendants fail to do so here. (Evartt v. Sup.Ct. (1979) 89 Cal.App.3d 795, 801.) Indeed, Defendants provided Plaintiffs with a specific address for Garcia until July 15, 2026. (Kibriya Decl., ¶ 11.) Moreover, Defendants failed to submit a declaration regarding Gandara’s foreign address and whether Gandara owns the vehicle or is the same individual listed under the vehicle’s registration, Finally, counsel’s assertions are based on information and belief.

Accordingly, Defendants’ Motion to Quash is DENIED.